

26VECV01958 26VECV01958

County: los-angeles
Division: Civil Law and Motion
Department: O
Hearing date: 2026-08-06
Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C08%2F06%2F2026
Source SHA-256: df53747c57572415de7312c95aff5b501afedc02b10ba795ff04fb430f1a2f44

Case Number: 26VECV01958 Hearing Date: August 6, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ISRAEL ALCANTARA , an individual, SUSANA PAROCUA, an individual, DANNY SEBASTIAN ALCANTARA, an individual, LOPEZ EMMANUEL ALEXANDER, an individual, ROCHA DIAZ JORGE ARMANDO, an individual, ANTONIO ZOQUITECATL ORTIZ, an individual,

Plaintiff,

vs.

CNC
PROPERTIES, LLC, a California limited liability company, ATLANTIC STAR, LLC, a California limited liability company, KYUNG MI CHOI, an individual, and
DOES 1-10, inclusive,

Defendants.

)

)

)

)

)

CASE NO.: 26VECV01958

ORDER

DENYING DEFENDANTS ATLANTIC STAR, LLC AND KYUNG MI CHOI'S MOTION FOR DISCOVERY
SANCTIONS

I.

BACKGROUND

Plaintiffs Israel

Alcantara, Susana Parocua, Danny Sebastian Alcantara, Lopez Emmanuel Alexander, Rocha Diaz Jorge Armando, and Antonio Zoquitecatl Ortiz (jointly, "Plaintiffs") allege Defendants CNC Properties, LLC ("CNC"), Atlantic Star, LLC ("Atlantic Star"), and Kyung Mi Choi ("Choi") (jointly, "Defendants") created and maintained a hazardous and unsafe working environment at 15826 Ventura. Bl., Suite 110, Encino, CA 91436 (the "Property"). Plaintiffs own or are employed at a restaurant that operates from a unit at the Property. As a result of these violations, Plaintiffs allege they suffered serious health problems arising from issues, including but not limited to, massive water leakage, water damage, flooding, and mold exposure.

Atlantic Star and Choi

now seek discovery sanctions against Plaintiffs in connection with their Motion to Compel filed June 11, 2026.

II.

PROCEDURAL

HISTORY

On April 2, 2026, Plaintiff filed a Complaint alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Violation of California Civil Code section 1929; (5) Violation of California Health and Safety Code section 17920.3; (6) Negligent Misrepresentation; (7) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (8) Negligent Infliction of Emotional Distress; (9) Breach of the Implied Covenant of Good Faith and Fair Dealing; (10) Violation of Business and Professions Code

sections 17200, et seq. (11) Premises Liability; and (12) Injunctive Relief.

On June 17, 2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Intentional Misrepresentation (Fraud); (5) Negligent Misrepresentation; (6) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (7) Negligent Infliction of Emotional Distress; (8) Breach of the Implied Covenant of Good Faith and Fair Dealing; (9) Nuisance; (10) Fraudulent Concealment; (11) Violation of Business and Professions Code sections 17200, et seq.; (12) Premises Liability; and (13) Injunctive Relief.

On July 10, 2026, Atlantic Star and Choi filed the instant Motion.

On July 23, 2026, the Court denied Plaintiffs' Motion to Compel Atlantic Star's and Choi's responses to their Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One. Plaintiffs also filed their Opposition to the instant Motion.

On July 30, 2026, Atlantic Star and Choi filed a Reply.

III.

LEGAL STANDARD

Code of Civil

Procedure § 2023.030[1] provides a Court "may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.

If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030(a).)

IV.

ANALYSIS

A.

Judicial Notice

The Court

grants Atlantic Star and Choi’s request for judicial notice of the July 22, 2026, Order and July 23, 2026, Minute Order in this action’s docket.

///

B.

Evidentiary Objections

The Court overrules

all of Atlantic Star and Choi’s evidentiary objections.

C.

Defendants’ Motion is Denied.

Atlantic Star

and Choi (“Defendants”) seek monetary sanctions in the amount of \$4,117.00.

Defendants contend this amount comprises the reasonable attorney’s fees and costs incurred as a result of Plaintiffs’ misuse of the discovery process by their proceeding with a Motion to Compel after learning Defendants had not received the discovery requests, representing the Motion would be withdrawn, and Defendants’ agreement to serve timely responses based on the re-service date. (See Mot. at 6:3-8.) Defendants contend monetary sanctions are warranted because they were forced to oppose a motion that lacked substantial justification.

In

opposition,[2] Plaintiffs contend they had a reasonable basis for litigating their Motion to Compel. Plaintiffs argue they did not abuse the discovery process and instead took necessary steps to

continue to litigate a genuine dispute as both parties disputed whether Defendants were properly served with the discovery requests on May 5, 2026, and therefore whether objections had been waived. (See Opp. at 3:1-7, 4:14-5:8, 8:10-16.) Plaintiffs argue Defendants seek to convert a routine discovery disagreement into a fee-shifting device. (See id., at 9:21.) Plaintiffs also argue Defendants' actions materially contributed to the circumstances they now characterize as sanctionable. (See id., at 14:3-14.)

In reply,

Defendants argue once Plaintiffs elected to re-serve their discovery requests and Defendants agreed to respond within the statutory time following re-service, there was no remaining basis to continue prosecuting the Motion to Compel. (See Reply at 2:24-26, 5:1-6.)

Here, the

Court notes after Plaintiffs re-served their discovery requests by email on June 12, 2026, Defendants confirmed to Plaintiffs they would serve responses within 30 days, or July 12, 2026. (See Declaration of Jieun Park filed July 10, 2026 ("Park Decl."), ¶ 9, Ex. 10.) Plaintiffs filed their Motion to Compel on June 11, 2026, with the hearing scheduled for July 23, 2026. In the interest of judicial efficiency, the Court believes upon receipt of Defendants' discovery responses, Plaintiffs' counsel should have withdrawn the Motion to Compel as the motion became moot, and Plaintiffs were no longer factually justified in bringing that Motion because there were no longer initial responses to compel. (See *Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434 ["the phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well-grounded in both law and fact"].) If Plaintiffs found Defendants' responses deficient, they should have subsequently met and conferred with Defendants and filed a motion to compel further as necessary.

However, given

the dispute between the parties as to whether Defendants initially received the discovery requests and the time that had passed since Defendants first purportedly served their discovery requests, the Court finds it reasonable for Plaintiffs to have filed the Motion to Compel as it provided an avenue for securing initial responses were Defendants to fail to serve responses by July 12, 2026. Defendants' opposition was due July 10, 2026. (See Code Civ. Proc. § 1005(b).) It appears Defendants had not served their discovery responses at the time they served their opposition to Plaintiffs' Motion to Compel. Plaintiffs'

Motion therefore still presented a controversy for this Court to decide at the time Defendants filed their opposition. Thus, any attorneys' fees Defendants incurred in opposing the Motion was not due to Plaintiff's misuse of the discovery process, as Plaintiff's Motion was still justified since no responses had yet been served. (See Code Civ. Proc. § 2023.010(h) ["Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery."].)

Accordingly,
the Court DENIES Defendants' Motion for Discovery Sanctions.

V.

CONCLUSION

Based on the
foregoing, the Court DENIES Defendants' Motion for Discovery Sanctions.

IT
IS SO ORDERED.

DATED: August 6, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.

[2] The Court will consider
all pages of Plaintiffs' Opposition but reminds Plaintiffs to comply with the page
limit requirements set forth in Rules of Court, rule 3.1113(d).